Chapter 7.7

REMOVAL OF SNOW AND ICE FROM SIDEWALKS

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Section 7.7.1. Business and Industrial Districts. [Amended 11-15-2022 STM by Art. 9]

In all Business and Industrial Districts, as defined and delineated in the Zoning By-law, the owner, or their agent, of any land abutting upon or contiguous to a sidewalk of a street shall cause said sidewalk to be maintained in a nonslippery condition suitable for pedestrian travel by clearing all snow and ice from a pathway at least 36 inches in width along the length of said sidewalk within the first three hours between sunrise and sunset after the cessation of each storm that results in the accumulation of snow and/or ice on such sidewalk and shall maintain said portion of sidewalk in a nonslippery condition by application(s) of sand and/or melting agents as may be necessary for this purpose. Corner and midblock curb ramps, and portions of driveways crossing sidewalks, are part of the sidewalk system, and shall likewise be maintained in a clear and nonslippery condition. The Commissioner of Public Works, or their designee, may grant a waiver from the terms of this Section 7.7.1 for good cause.

Section 7.7.2. Multifamily dwellings. [Amended 11-15-2022 STM by Art. 9]

The owner, or their agent, of any building designed or occupied as a residence by more than four families or which contains more than four dwelling units, as defined in the Zoning By-law, shall cause all sidewalks of a street which are contiguous to the land upon which the building is situated to be maintained in a nonslippery condition suitable for pedestrian travel by clearing all snow and ice from a pathway at least 36 inches in width along the length of said sidewalk within the first three hours between sunrise and sunset after the cessation of each storm that results in the accumulation of snow and/or ice on such sidewalk, and shall maintain said portion of sidewalk in a nonslippery condition by application(s) of sand and/or melting agents as may be necessary for this purpose. Corner and midblock curb ramps, and portions of driveways crossing sidewalks, are part of the sidewalk system, and shall likewise be maintained in a clear and nonslippery condition. The Commissioner of Public Works, or their designee, may grant a waiver from the terms of this Section 7.7.2 for good cause. When subsequent street plowing by the DPW fills in previously cleared corners, property owners will have an additional six hours to reclear corners.

Section 7.7.3. General requirement. [Amended 11-15-2022 STM by Art. 9]

Except as set forth in Sections 7.7.1 and 7.7.2 above, the owner, or their agent, of any land abutting upon or contiguous to a sidewalk of a street shall cause said sidewalk to be maintained in a nonslippery condition suitable for pedestrian travel by clearing all snow and ice from a pathway at least 36 inches in width along the length of said sidewalk within 24 hours of the cessation of each storm that results in the accumulation of snow and/or ice on such sidewalk, and shall maintain said portion of sidewalk in a nonslippery condition by application(s) of sand and or melting agents as may be necessary for this purpose. Corner and midblock curb ramps, and portions of driveways crossing sidewalks, are part of the sidewalk system, and shall likewise be maintained in a clear and nonslippery condition. Notwithstanding any other

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provisions in Section 7.7.3, for any storm that ends between the hours of 4:00 p.m. on Friday and 12:00 noon on Saturday, any owner to whom Section 7.7.3 applies, or their agent, shall have 30 hours after the cessation of the storm within which to comply with the requirements of Section 7.7.3. The Commissioner of Public Works, or their designee, may grant a waiver from the terms of this Section 7.7.3 for good cause.

Section 7.7.4. No ice and snow to be placed on street.

No person, unless authorized by the Commissioner of Public Works, shall place or cause to be placed ice or snow upon any street of the Town. Without limiting the generality of the foregoing, no person, unless authorized by the Commissioner of Public Works, shall place or cause to be placed ice or snow upon any sidewalk of the Town.

Section 7.7.5. Violations and penalties. [Amended 11-15-2022 STM by Art. 9]

The violation of any provision of Sections 7.7.1 and 7.7.2 of this Chapter 7.7 shall, at the discretion of the DWP Commissioner, be subject to a fine of $100 for the first violation, $150 for the second violation, and $200 for the third and subsequent violations in any fiscal year. The violation of any provision of Section 7.7.3 of this Chapter 7.7 shall be subject to a fine of $50 for the first violation and $100 for the second and subsequent violations in any fiscal year. The Commissioner of Public Works, or other authorized agent of the Town, shall have the discretion to impose fines for second, third, and subsequent violations on successive periods of at least 24 hours' duration within the same snow event, and/or for subsequent snow events within the same season. One or more violations of any provision of Section 7.7.4 of this Chapter 7.7 shall be subject to a fine of $250 for each violation.

Section 7.7.6. Compliance delay.

Depending upon the severity of a storm and other factors, the Commissioner of Public Works may delay the period for compliance with Sections 7.7.1, 7.7.2, or 7.7.3 of this by-law. In the event of initiating a compliance delay, the Commissioner of Public Works shall post a notice prominently on the Town of Brookline's internet home page and make other good-faith efforts to notify the public, including, but not limited to, social media outlets, the cable access television station, email list serves, and the emergency telephone notification system.

Section 7.7.7. Annual report.

The Select Board shall include in the Annual Report of the Town a summary of the Town's efforts and results during the past year in implementing Sections 7.7.1, 7.7.2, and 7.7.3, including, but not limited to, public education, enforcement and assistance to owners.

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